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athenahealth Privacy Policy

Request a Demo

July 28, 2025

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Solutions

Our Platform

athenaOne
An AI-powered, all-in-one solution that improves clinical effectiveness, patient experience, and financial performance.

athenaOne Solutions

Electronic Health Record
A connected, tailorable EHR solution that empowers clinicians.

Medical Billing & Practice Management Software
Boost efficiency and collections with our practice management software and services.

Patient Engagement
Communication and care tools that build patient relationships.

Benefits of athenaOne

Value-Based Care Support
Improve patient outcomes while tracking and getting paid for care.

AI capabilities in athenaOne
AI-powered tools that help drive efficiency and performance.

Interoperability
Get the data you need when you need it from across our network.

Cost & Value
A model that ensures your success translates into ours.

Customer Support
In-person training and live support that empowers you from day one.

Additional Offerings

Payer Solutions
Technology that helps improve patient outcomes and reduce costs.

Advisory Services
Expert consulting and support to help improve performance and ROI.

Platform Services
Easily connect to athenaOne and extend its capabilities.

Marketplace Program
Tailor your athenahealth experience with industry-leading partners.

athenaIDX
Enterprise RCM software that maximizes collections with less work.

I.SCOPE AND PURPOSE:

This privacy policy ("Policy") describes how athenahealth, Inc. and our parent companies, subsidiaries, and affiliated companies ("athenahealth," "we," "us," "our", and/or "athena") may collect, use, and share information about you that we obtain through **www.athenahealth.com** and other websites and applications that link to this Policy (collectively, the "Sites"). This Policy also applies to any information we collect offline, such as when you visit our offices, attend athenahealth events, or interact with our representatives at other events, or in other contexts in which we make this Policy available to you.

Who We Serve

This Policy does not apply to athenahealth product offerings that have their own privacy policies, or to websites of third parties to which we provide links. We do not control and are not responsible for the privacy practices of the websites of other entities and we urge you to review any applicable third-party privacy policies for yourself.

Provider Organizations
Startup Practices
Small Medical Practices
Medium to Large Medical Groups
Enterprises & Health Systems
Federally Qualified Health Centers
Member-centric Care Organizations
Medical Specialties
Behavioral Health
Orthopedics
Pediatrics
Primary Care
Urgent Care
Women's Health
View All Specialties
Other Organizations
Healthcare Payers
Labs and Imaging Centers
Partners
Marketplace Partners
Developers
Resources
Blog
Case Studies
Customer Success Stories
ebooks
Our Thought Leaders
View All Content

Our processing of data on behalf of our healthcare provider customers is governed by the agreements we enter into with our customers, which may include Business Associate Agreements as applicable and required under the Health Insurance Portability and Accountability Act ("HIPAA"). Your healthcare provider may also have its own privacy practices and policies that govern its collection and use of your data. We are not responsible for how your healthcare provider treats your information, and we recommend you review their privacy policies.

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II. WHAT DOES ATHENAHEALTH DO?

athenahealth is a provider of network-enabled services for hospital and ambulatory customers nationwide, headquartered in the United States. We offer cloud-based solutions that help healthcare providers with multiple potential solutions including electronic health records, revenue cycle management, and patient engagement tools. For more information about athenahealth, please see the "About" section of **www.athenahealth.com**.

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III. WHAT PERSONAL INFORMATION DO WE COLLECT?

Personal information is data that can be used to identify you. The types of personal information that we collect depend on your interactions with us. Over the last 12 months, we have collected personal information that generally fall into the following categories:

Identifiers, such as your name, email address, or IP address.

Information contained in our customer records, such as postal address or telephone number.

Commercial information, such as information regarding products or services you purchased.

Internet or other electronic network activity information, such as how you interact with our website.

Professional or employment information, such as your job title or employer.

Geolocation data, such as your general location information (e.g., city/state) which may be collected or derived from your IP address. In addition, some of our services may request your precise location information via GPS-based functionality to allow certain features to work. We will ask your permission before we collect or use precise location information, in accordance with any applicable legal requirements to the extent precise geolocation information is considered "sensitive" information under applicable law.

ebook

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Get the insights

using automatic data collection technologies as described in the "Cookies and Automated Data Collection Technologies" section below. This information may include IP address, geolocation information, browser type and version, device type, mobile device identifiers, and information reflecting how you searched, browsed, and were directed to the Sites, including mouse movement, click, touch, scroll, and keystroke activity.

- We may also collect information from other sources, such as lead generation companies, social networks, and business partners that offer co-branded services or help us sell or distribute our products. We may also collect information from other users of our services or from available sources.

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V.HOW DO WE USE YOUR INFORMATION?

We use your information:

- In ways that you would expect us to based on why we collected it. For example, if you
- To provide, enhance, and improve our services, including to optimize our Sites functionality and identify our visitors' and users' areas of interest. For example, when you participate in our surveys, screeners, and/or information gathering sessions, or otherwise provide feedback, we may use that feedback to develop new products and services.
- To identify and authenticate you, such as to determine and validate whether you are an existing user of our services or products or a prospective client.
- To enable cross-device/cross-context tracking for an account you may have with us. For example, you might use multiple browsers on a single device, or use various devices (such as desktops, smartphones, and tablets), which can result in your having multiple

Company

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See how athenaOne works

accounts or profiles across various contexts and devices. Cross-device/cross-context technology may be used to connect these various accounts or profiles and the corresponding data from the different contexts and devices so you can more easily use your account(s).

- To communicate with you, such as to you send you emails, solicitations, invitations, newsletters, awareness campaigns, and announcements.
- To maintain the safety, security, and integrity of our Sites and services, and for our own internal legal compliance purposes.
- To protect the health and safety of our personnel, clients, guests, and the general public.
- For other purposes explained at the time of collection, or for other business purposes consistent with the context of the collection of your information.

We may use information that does not identify you and could not reasonably be used to identify you (including information that has been aggregated, anonymized, or de-identified) for any purpose except as prohibited by applicable law.

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VI.HOW DO WE SHARE YOUR INFORMATION?

We disclose the following categories of personal information for commercial purposes: identifiers, commercial information, internet activity, and geolocation data. We share information outside of athenahealth in the following circumstances:

- With service providers and vendors that provide services to us, such as to provide analytics, manage our content, administer ads, provide insights to us related to marketing needs, for market research purposes, and to analyze our marketing efforts.
- With third parties that provide user audience matching services. For instance, we incorporate the Facebook pixel on our non-patient facing Sites and may share your email address with Facebook as part of our use of Facebook Custom Audiences. This helps us find more potential customers that have similar interests as you do. Some technology services may provide us with their own data, which is then uploaded into another technology service for matching common factors between those datasets.
- With our related entities and/or affiliates for business purposes including, but not limited to, customer support, marketing, and technical and business operations. We also may share information with affiliates for commercial purposes.
- When you make your information public or otherwise accessible to other users through the Sites, such as information that you post related to reviews of partners or on the Success Community. Please think carefully before posting such information as you are solely responsible for the content you post and the potential use of such information by others. Once you have posted information, you may not be able to edit or delete such information.
- With our customers, when you engage in our surveys as an authorized user, through the onboarding process, through surveys collecting feedback on how we are doing, surveys administered post interaction with us related to support or training, and other surveys, including focus groups and usability design activities such as click tests, card sorts, and other surveys and tests you participate in. We typically notify you in advance that we will share your information with our customers if you complete a survey.

We also share information with other entities in the following situations:

- Where you have given us your consent to share or use information about you;
- When we believe that we need to share information about you to provide a service that you have requested from us or from others;
- Where we are required by law or other legal process to disclose information, and where required, in response to a lawful request by public authorities, including meeting national security or law enforcement requirements;
- Where we believe that it is necessary to avoid liability or violations of the law;
- To protect the rights, property, life, health, security, and safety of us, the Sites, or anyone else;
- To an actual or potential buyer (and its agents and advisers) in connection with any actual or proposed purchase, merger, or acquisition of all or any part of our business;
- At your request or direction, such as when you choose to share information with a social network about your activities on the Sites; or
- To any other person with notice to you and your consent to the disclosure.

Notwithstanding the above, we may share information that does not identify you and could not reasonably be used to identify you (including information that has been aggregated, anonymized, or de-identified) except as prohibited by applicable law. With respect to deidentified patient information, we disclose such deidentified information to third parties only when permissible pursuant to our contractual commitments with our customers and in accordance with Health Insurance Portability and Accountability Act ("HIPAA") requirements or other applicable law. We employ the safe harbor method or the expert determination method, as enumerated under HIPAA. Those third parties to whom the deidentified data is disclosed are third party service providers/vendors with whom we have relationships and/or academic researchers and/or institutions that are contributing to healthcare.

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VII. RETENTION AND PROTECTION OF DATA

While we maintain your information, we protect it using administrative, physical, and technical security safeguards designed to protect your information. When we collect certain sensitive information, we encrypt the transmission of that information using secure socket layer technology (SSL). Despite these measures, we cannot guarantee the security of the information we maintain about you.

We retain information for different periods of time depending on the purposes for which we collect and use it, as described in this Policy. We will not retain information for longer than needed to fulfill these purposes unless a longer retention period is required to comply with legal obligations. Also, there may be technical or other operational reasons where we are unable to delete or de-identify your information. Where this is the case, we will take reasonable measures to prevent further processing your information.

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VIII.COOKIES AND AUTOMATED DATA COLLECTION TECHNOLOGIES

Our Sites use cookies and similar technologies (such as pixels and pixel tags, ad tags, Software Development Kits ("SDKs"), clear GIFs, session replay scripts, and Javascript). Cookies are small text files placed on your device that help the Sites work and help us gather statistical information about how visitors use the Sites, improve your experience, and maintain security.

Cookies also help us deliver advertisements, some of which may be tailored to your behaviors on the Sites. We engage third parties to help us deliver these advertisements, and these third parties may collect your information over time and across our Sites (and third party sites) in order to associate different devices you use and further gain insights into the goods and services that may interest you.

To exercise your options with respect to cookies, please select "Cookie Preferences" on the banner that is visible at the bottom of our website, or click link on the bottom of athenahealth.com labeled, "Cookie Preferences".

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IX.SOCIAL MEDIA AND OTHER INTEGRATIONS

Some of our Sites and services may have social media and technology integrations that are operated or controlled by separate entities. We also may collect information from third party social media and marketing companies to enhance our data sets. Some examples include:

- **Links.** Our Sites include links that hyperlink to websites, platforms, and other services not operated or controlled by us.
- **Liking, Sharing, and Logging-In.** We may embed a pixel or SDK on our Sites that allows you to "like" or "share" content on, or log in to, your account through social media. If you choose to engage with such integration, we may receive information from the social network that you have authorized to share with us. Please note that the social network may independently collect information about you through the integration.
- **Brand Pages and Chatbots.** We may offer our content through social media. Any information you provide to us when you engage with our social media content is treated in accordance with this Policy. Also, if you publicly reference our Sites on social media (e.g., by using a hashtag associated with athenahealth in a tweet or post), we may use your reference on or in connection with our Sites.
- **Platform Linking.** Our Sites may offer you the ability to link to another service or partner to retrieve certain data about your account on that service. For example, if you link your account to one of the partners in the athenahealth marketplace, the linking may allow us to obtain information such as your username and email address. For more information about how these platforms handle information about you, please refer to their respective privacy policies and terms of use.

Please note that when you interact with other entities, including when you leave our Sites, those entities may independently collect information about you and solicit information from you. The information collected and stored by those entities remains subject to their own policies and practices, including what information they share with us, your rights and choices on their services and devices, and whether they store information in the U.S. or elsewhere. We encourage you to familiarize yourself with and consult their privacy policies and terms of use.

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X.STATE CONSUMER PRIVACY RIGHTS

Rights for Residents of Applicable States

If you are a resident of a state with applicable consumer privacy laws, you may have the following rights:

- To confirm whether we process your personal information.
- To access your personal information.
- To correct inaccuracies in your personal information.
- To delete your personal information that we have obtained.
- To receive a copy of your personal information in a portable and readily usable format.
- To opt out of the sale or sharing of your personal information.
- To opt out of the processing of your personal information for purposes of (i) targeted advertising or (ii) automated decision-making or profiling in furtherance of decisions that produce a legal or similarly significant effect on you.

If you live in a state that requires specific consent prior to processing your sensitive personal information for certain purposes, we will obtain such and you can withdraw your consent at any time.

You have a right to request information about the categories of personal information we have collected about you, the categories of sources from which we collected the personal information, the purposes for collecting or sharing the personal information, the categories or named specific third parties with whom we have shared or sold your personal information, and the specific pieces of personal information we have collected about you.

Residents of applicable states may exercise the above rights by:

- Submitting a request at **www.athenahealth.com/consumer-privacy-request**

We may ask you to provide us with information necessary to reasonably verify your identity before responding to your request. We will consider all requests and provide our response within the time period required by applicable law. Please note, however, that certain information may be exempt from such requests. If we deny your request in whole or in part, you may have the right to appeal the decision. In such circumstances, we will provide you with information regarding the appeals process.

Response Timing and Format

We endeavor to respond to a consumer request within forty-five (45) days of its receipt. If we require more time (up to 90 days), we will inform you of the reason and extension period in writing.

California Resident Privacy Notice

Below, please find the categories of information we may have collected about you in the last twelve months, the purposes for the collection, and the third parties with whom your personal information may have been disclosed, shared, or sold. For more information on these practices, please see Sections III-VI.

Categories of personal information collected	Purposes for the collection or sharing of personal information	Third parties with whom personal information may have been disclosed, shared, or sold
• Identifiers • Information contained in our customer records • Commercial information • Internet or other electronic network activity information • Professional or employment information • Geolocation data • Inferences drawn from other personal information	• To provide the Sites • To improve the Sites • To personalize the Sites • Marketing and advertising • Business operations • Where you have given us your consent • As required by applicable law • To evaluate or conduct a merger, divestiture, restructuring, reorganization, dissolution, or other sale or transfer of some or all of our assets	• Service providers • Third Party Partners • Our related entities • Other users through the Sites (when you make your information public or otherwise accessible) • With our customers • Where you have given us your consent

If you are a California resident, you may have the following rights with respect to the personal information we process about you:

- To request information about the categories of personal information we have collected about you, the categories of sources from which we collected the personal information, the purposes for collecting or sharing the personal information, the categories of third

parties with whom we have shared or sold your personal information, and the specific pieces of personal information we have collected about you.

- To request that we delete personal information that we have collected from you.
- To request that we correct inaccurate personal information that we maintain about you.
- To opt out of the sale or sharing of your personal information.
- To limit the use and disclosure of sensitive personal information.

California residents may exercise the above rights by:

- Submitting a request at **www.athenahealth.com/consumer-privacy-request**
- Calling our toll-free number at 888-807-2076

Only you, or someone legally authorized to act on your behalf, may make a verifiable consumer request related to your personal information. You may also make a verifiable consumer request on behalf of your minor child, however please see Section XI regarding our collection of this data.

We may ask you to provide us with information necessary to reasonably verify your identity before responding to your request. We may require you to use your email address in order to perform such verification. We will consider all requests and provide our response within the time period required by applicable law. Please note, however, that certain information may be exempt from such requests. If we deny your request in whole or in part, you may have the right to appeal the decision. In such circumstances, we will provide you with information regarding the appeals process. We will not discriminate against you for exercising any of your rights.

Response Timing and Format

We endeavor to respond to a consumer request within forty-five (45) days of its receipt. If we require more time (up to 90 days), we will inform you of the reason and extension period in writing.

Other California Privacy Rights

California's "Shine the Light" law (Civil Code Section § 1798.83) permits users of our Sites that are California residents to request certain information regarding our disclosure of personal information to third parties for their direct marketing purposes in particular: Customers who are residents of California may request (i) a list of the categories of personal information disclosed by us to third parties during the immediately preceding calendar year for those third parties' own direct marketing purposes; and (ii) a list of the categories of third parties to whom we disclosed such information. To make such a request, please write us at: Chief Compliance Officer, athenahealth, Inc. Boston Landing, 80 Guest Street, Boston, MA 02135. We may require additional information from you to allow us to verify your identity and we are only required to respond to requests once during any calendar year.

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XI.MINORS

The Sites are intended for a general audience and are not intended for minors under the age of eighteen. athenahealth does not wish to obtain any information from or about such minors through the Sites. If you are under eighteen years old, do not use the Sites.

We do not knowingly gather personal information (as defined by the U.S. Children's Privacy Protection Act, or "COPPA") about children under the age of 13. If you are a parent or guardian and you believe we have collected information from your child in a manner not permitted by law, contact us using the information in the "Contact" section below. We will remove the data to the extent required by applicable laws. We do not knowingly "sell," as that term is defined under the CCPA, the personal information of minors under 16 years old who are California residents.

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XII.INTERNATIONAL TRANSFER

We are based in the U.S. and the information we collect is governed by U.S. law. If you are accessing the Sites from outside of the U.S., please be aware that information collected through the Sites may be transferred to, processed, stored, and used in the U.S. and other jurisdictions. Data protection laws in the U.S. and other jurisdictions may be different from those of your country of residence. Your use of the Sites or provision of any information therefore constitutes your consent to the transfer to and from, processing, usage, sharing, and storage of information about you in the U.S. and other jurisdictions as set out in this Policy.

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XIII.UPDATES TO THIS PRIVACY POLICY

We reserve the right to make updates and revisions to this Policy at our discretion and at any time. When we make changes to this Policy, we will post the updated notice on **www.athenahealth.com** and update the effective date. Any changes will be effective as of the "Effective" date. Your continued use of our Sites following the posting of changes constitutes your acceptance of such changes.

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XIV.CONTACT

If you have any questions or comments about this Policy or if you have a disability and would like to access this Policy in an alternative format, please contact us by writing to:

athenahealth, Inc.
Boston Landing
80 Guest Street
Boston, MA 02135

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· Call us anytime 800.981.5084

Solutions

Who We Serve

Resources

Company

athenahealth

We use cookies for analytics, advertising, and to improve our site.

You agree to our use of cookies by closing this box or continuing to use our site. To find out more, see our **Privacy Policy**.

Cookie Preferences

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